

26SMCV01451 26SMCV01451

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-08

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C07%2F08%2F2026

Source SHA-256: f7d85adfb2b075e6a1b8c3192a3ea329f67f4c15332ced4810944f7699229d91

Case Number: 26SMCV01451 Hearing Date: July 8, 2026 Dept: I

This is a demurrer in a Song-Beverly case. The theory is that plaintiff's claim is untimely. Suit was filed on March 19, 2026. The car here was bought in January 2020—over six years ago. The warranty has long expired. According to the defense, the statute has run. Plaintiff argues that there is tolling. That is for a couple of reasons. First, plaintiff claims that there was a case pending in Michigan that plaintiff attempted to join. However, defendant's motion to sever was granted and plaintiff was dismissed (along with 4000 others) from that case. There was another case in Los Angeles filed in 2025. But the same problem pertained and plaintiff was severed out again. Plaintiff's theory is that the time plaintiff was involved in those cases ought to toll the statute, and when that tolling is considered, the claims are timely. Plaintiff also claims that defendant concealed the problems with the car, and therefore there was tolling until plaintiff discovered the problem. According to plaintiff, the claims do not mature until plaintiff suspects, or reasonably should suspect, the wrongdoing. And, plaintiff says, there was no reason to have suspected anything until within the last three years. In reply, the defendant states that fraudulent concealment does not toll here. According to defendant, there was no concealment here, which would require either a duty to speak or some affirmative act of concealment, none of which has been adequately alleged. According to Ford, a reasonable person would have discovered, or at

least suspected, all that plaintiff now suspects long ago. Ford asserts that its disclosures to the NHTSA are public, even if most people do not read them, because they are available to the public and are public documents. Thus, Ford reasons, there was no concealment and had plaintiff been diligent, plaintiff would have discovered the issues long ago.

As to equitable tolling during the other two cases, the court does not have enough to know.

Plaintiff has not specifically explained how the timing works. The court notes that there is a tolling provision or doctrine that deals with class action suits during the time the class is alleged until certification is declined. But the court does not know how that applies here and no one has walked through the calendar. It is plaintiff's burden to do so, since tolling is a defense to a defense.

Without more information, plaintiff has not adequately alleged tolling. The court is less taken with the tolling by concealment argument.

Concealment does require a duty to speak, and the court is not sure there is one here. Further, the fact that Ford disclosed information to the NHTSA, where it was made public, undercuts any tolling argument based on concealment. The public disclosure of a fact is the opposite of concealing it. The court is therefore inclined to SUSTAIN the demurrer with 30 DAYS' LEAVE TO AMEND.

If plaintiff does amend, and if defendant re-asserts a demurrer on the theory that there was no tolling during the pendency of the other two cases, the court will not preclude plaintiff from re-asserting the contrary argument. The court would appreciate, though, more detailed briefing on the state of the law with reference to how it works in class actions (and whether the logic underlying those cases applies) and whether if one does not include the time that plaintiff was actually involved in those cases, if excluded, would render the case timely. However, unless plaintiff can allege new facts on concealment with specificity, the court is not finding that there was tolling due to concealment and the court would not want to consider anew arguments in opposition absent such new facts.